

## **ARTICLE VIII**

### **INDEMNIFICATION OF OFFICERS MANAGERS AND MANAGING AGENT**

8.1 Indemnification. The Association shall indemnify every Director, Officer, their respective successors, personal representatives and heirs, against all loss, costs and expenses, including counsel fees, reasonably incurred by them in connection with any action, suit or proceedings to which they may be made a party by reason of being or having been a Director or Officer of the Association, except as to matters as to which they shall be finally adjudged in such action, suit or proceeding to be liable for gross negligence or willful misconduct. In the event of a settlement, indemnification shall be provided only in connection with such matters covered by the settlement as to which the Association is advised by counsel that the person to be indemnified has not been guilty of gross negligence or willful misconduct in the performance of his duty as such Director or Officer in relation to the matter involved. The foregoing rights shall not be exclusive of other rights to which such Director or Officer may be entitled. All liability, loss, damage, cost and expense incurred or suffered by the Association by reason of or arising out of or in connection with the foregoing indemnification provisions shall be treated and handled by the Association as common expenses; provided, however, that nothing contained in this Article IX shall be deemed to obligate the Association to indemnify any member or owner of a condominium unit who is or has been a Director or Officer of the Association with respect to any duties, obligations or liabilities voluntarily assumed or incurred by him under and by virtue of the Combined Condominium Documents.

8.2 Other. Contracts or other commitments made by the Board of Directors or Officers shall be made as agent for the unit owners, and they

shall have no personal responsibility on any such contract or commitment (except as unit owners), and the liability of any unit owner on any such contract or commitment shall be limited to such proportionate share of the total liability thereof as the common interest of each unit owner bears to the aggregate common interest of all of the unit owners.